

Athens, 02-04-2024

No. Protocol: 1037

DECISION 13/2024

The Hellenic Data Protection Authority convened at its headquarters, Kifisias 1-3, Athens, on Tuesday, October 17, 2023, following an invitation from its President, to examine the case referred to below in the background of this decision. Present were the President of the Authority, Konstantinos Menoudakos, and the regular members of the Authority Spyridon Vlachopoulos as rapporteur, Konstantinos Lamprinoudakis, Charalampos Anthopoulos, Christos Kalloniatis, also as rapporteur, Aikaterini Iliadou, as well as Maria Psalla, an alternate member of the Authority, replacing the regular member Grigorios Tsolias, who, although duly summoned in writing, did not attend. Present without voting rights were Eleni Maragkou, Ioannis Lykotrafitis, Anastasia Tritaki, and Aikaterini Chatzidiakou, auditors of the Authority, as assistant rapporteurs, and Irini Papageorgopoulou, an employee of the administrative affairs department, as secretary.

The Authority took into account the following:

At the end of 2021, the Authority became aware of the decision of the Greek government regarding the development and installation of the "Centaurus" Program by the Ministry of Migration and Asylum (hereinafter referred to as YMA) aimed at monitoring the reception and accommodation structures for third-country nationals on the islands of the Aegean. Additionally, in December 2021, the Authority received a request for information (No. Protocol of the Authority G/EIS/8231/17-12-2021) from the Committee on Civil Liberties, Justice and Home Affairs of the European Parliament (LIBE Committee) regarding surveillance technologies at the borders, while a request for investigation and provision of an opinion regarding the procurement and installation of the "Hyperion" and "Centaurus" systems in the reception and accommodation structures for asylum seekers was submitted before the Authority in February 2022 (with No. Protocol of the Authority G/EIS/2515/18-02-2022) by civil society organizations (i. Greek Union for Human Rights, ii. HIAS Greece, iii. Homo Digitalis) in collaboration with A, Lecturer at Queen Mary University of London. The Authority also received a letter in July 2022 (with No. Protocol of the Authority G/EIS/9479/11-08-2022) regarding the aforementioned systems from the Representation of the United Nations High Commissioner for Refugees in Greece.

The "Centaurus" program is said to constitute a comprehensive digital management system for Electronic and Physical Security around and within the facilities of Closed Controlled Structures (KED) and Reception and Identification Centers (RIC) for third-country nationals on the islands of Lesbos, Chios, Samos, Leros, and Kos, utilizing cameras and motion analysis algorithms (Artificial Intelligence Behavioral Analytics), the management of which will be carried out by YMA. The "Centaurus" program includes, among other things, the use of a CCTV system and unmanned aerial vehicles (drones), through which personal data processing will occur, at least of images.

At the same time, the "Hyperion" Program is described as a comprehensive entry-exit control system at the facilities of the aforementioned structures aimed at controlling the entry and exit of both the hosted individuals and the certified members of certified non-governmental organizations (NGOs) by presenting the asylum seeker card or NGO member/employee card, and on the other hand, the employees in the structures through an RFID reader combined with a fingerprint (two-factor authentication), thus involving the processing of personal data, specifically biometric data.

Based on the above, the Authority, with the No. Protocol G/EKE/563/02-03-2022 document, summoned YMA, as the data controller, to provide information regarding the said "Centaurus" and "Hyperion" programs. Specifically, the Authority requested YMA to provide clarifications, among other things, regarding: a) the legal basis (provision of law and/or law) for the intended processing, b) the other elements of this processing (such as data retention period, informing data subjects, etc.), and c) whether a study has been conducted...

In response to the aforementioned document from the Authority, the Ministry of Migration and Asylum (YMA) sent the Authority's document number G/EIS/4732/18-03-2022 (YMA document number ...) a memorandum from its Data Protection Officer (hereinafter DPO), which stated, among other things, that these two programs have not been fully implemented, as several secondary functions are still in the implementation phase, while the primary functions (video surveillance via closed-circuit television and drones, entry-exit through security turnstiles) of the programs are subject to continuous adjustments and are in pilot application. In the same document, YMA submitted to the Authority the following accompanying documents: a) the impact assessment dated 15-01-2022 regarding data protection and Privacy Policy for the video surveillance system of the "Centaur" Program, b) the impact assessment dated 20-01-2022 regarding data protection and Privacy Policy for video surveillance using drones of the "Centaur" Program, c) the impact assessment dated 20-01-2022 regarding fundamental rights for the "Centaur" Program, d) the Privacy Policy for the processing of biometric data, e) the impact assessment dated 30-01-2022 regarding data protection for the processing of fingerprints of the "Hyperion" Program, and f) the impact assessment dated 10-10-2022 regarding data protection from the simultaneous use of a special plastic card bearing a unique unmodifiable number (UID) in an RF circuit.

The Authority, after examining and analyzing the aforementioned memorandum and the accompanying documents, requested from YMA, with document number G/EXE/2264/13-09-2022, the provision of supplementary information. Specifically, among other things, the Authority requested clarification on a number of issues regarding the data processing carried out by the video surveillance system of the "Centaur" program, the processing of biometric data carried out by the "Hyperion" system, while also pointing out a number of ambiguities, contradictory and erroneous references found in the documents submitted with the aforementioned Authority document number G/EIS/4732/18-03-2022 and requested clarification on these.

With letter number G/EIS/10875/10-10-2023 (YMA document number ...) from the DPO of YMA and the accompanying file number G/EIS/10991/13-10-2022, YMA, in response to questions and allegations included in the aforementioned letter from the Authority, stated, among other things, the following, briefly outlined: a) the Authority should not overlook that YMA, as a newly established ministry (2019), is still in the process of complying with the GDPR and Law 4624/2019, while it does not have an Independent Office of Data Protection Officer despite processing large-scale personal data, b) the specific programs have not been developed across all structures, are still in the implementation phase and operational testing, and the final acceptance check of the projects by YMA is pending, c) the contracts for the said programs are gradually being completed from October 2022 to January 2023, while some phases are completed later, resulting in the Data Protection Impact Assessment (DPIA) for the aforementioned systems being conducted without the entirety of their functionality and the scope of their parameterized functions being known, due to the confidentiality of the content of the contracts and the ongoing implementation, while the initial conclusions drawn regarding the impacts on data subjects are not yet reliable, d) references to the repealed Regulation 45/2001 and the repealed Decision 1247/2002/EC are considered references to the new Regulation 2018/1725, e) the preparation of any report or documentation regarding the protection of fundamental human rights clearly falls outside the work and responsibilities of the DPO and therefore any further reference to this specific request for clarification is unnecessary.

Furthermore, specifically regarding the "Centaur" program, the following information was provided with the aforementioned memorandum: a) The data controller is YMA, which is also responsible for implementing the measures as well as the individual...

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Hierarchically involved Reception and Identification Service (ΥΠ.Υ.Τ.) in collaboration with the General Directorate of Informatics & Communications of the Ministry. A correct repetition of the Data Protection Impact Assessment (EAPD) and the Privacy Policy is made in order to harmonize the relevant references in these texts regarding this point.

b) The main legal basis for the processing of the video surveillance system (and drones) of the "Centaurus" Program is the legal basis of Article 6 paragraph 1, point f of the GDPR. A concurrent

legal basis for the processing is also the legal basis of Article 6 paragraph 1, point e. With the correct repetition of the EAPD and the Privacy Policy, the relevant reference regarding the legal basis of the processing is harmonized.

c) Prior to the government decision for the development of the "Centaurus" program, the Ministry of Migration and Asylum (YMA) had foreseen "alternative security measures such as fencing the property, installation of regular patrols by security personnel, use of doormen, provision of better lighting, installation of security locks, break-in protected windows and doors, or application of anti-graffiti coating or sheets on walls." In practice, it was proven that these measures were not as effective as video surveillance systems against burglaries, thefts, arsons, and vandalism, when at full capacity the designated refugee camps in Lesbos, Samos, Chios, Malakasa, etc., host up to 8000 residents each, and thus the policing and/or guarding of 8000 residents requires a considerable number of personnel such as police officers, guards, etc. Illegal activities, such as incidents of theft, assault, vandalism, and arson of public and private property, are recorded by the extensive deployment of surveillance cameras, which clearly benefits the overwhelming majority of beneficiaries. Surveillance through CCTV has evidently reduced the initially high rates of vandalism and arson in the accommodation areas and equipment at the Reception and Identification Centers (KYT). From a financial perspective, these damages were particularly costly to EU taxpayers. Due to effective CCTV surveillance, the Ministry has observed lower rates of vandalism and arson within the KYT.

d) There is still no structured activity record regarding all data processing at YMA as it had not been budgeted during the assignment of work to the external Data Protection Officer. There is a provision to initiate a relevant assignment for the creation of the activity record at YMA.

e) It was mistakenly stated that there is no contract between YMA and the "Sign Company."

f) According to the Contract for the Centaurus program, the interconnection with Civil Protection, the National Emergency Center (EKAB), the Hellenic Police (ΕΛ.ΑΣ.), the Fire Service (ΠΥ), and the Coast Guard has been specified. To date, there have been no cases of data provision (collected through video surveillance with drones) to the Hellenic Police or any other public authority, as drone flights are currently only foreseen in cases of emergency and specifically when the location where an incident has occurred is inaccessible due to force majeure, such as fire or unrest. The operators of the drones will be employees of ESA Security Solutions s.a., who will provide security services within the framework of implementing a framework agreement for "Provision of Facilities Management services in all types of Temporary Reception and Accommodation Structures for asylum seekers, refugees, and migrants, and related infrastructures and facilities, as well as building infrastructures of any Service under the jurisdiction of the Ministry of Migration and Asylum" - Section 4: Regions "Attica, Central Greece."

g) Access to the data of the beneficiaries is made through the network of the Hellenic Police (ΕΛ.ΑΣ.), POL, which is a classified physically independent network, with management access only by authorized users of the Hellenic Police. Users of the POL system (foreigners' traffic mapping system) are authorized regarding access and handling of information by the State Security, following the prescribed procedure, while access to these systems is made through a special card and use of access codes. Incoming and outgoing correspondence is processed through the Electronic Document Management Information System "IRIDA," one of the benefits of which is the secure handling of information. Additionally, the classification of contracts as confidential ensures minimal sharing of information exclusively to classified roles. The IRIDA correspondence management system serves all documents of the organization, and its managers are the authorized personnel of the Air Force. All confidential correspondence is processed based on the...

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classic procedures provided by the EKA. h) As an organizational measure, any copies of images from video are granted only with the blurring of other individuals, to minimize data. However, there is still no relevant application as it was not budgeted during the assignment of the project to the external Data Protection Officer. There is a provision to initiate a relevant project assignment for the creation of the corresponding application. The text-centric approach in the text of the GDPR is presented through definitive and not pending or future verbal formulation of this goal, which is to progressively create a relevant documentation folder with the appropriate tools for minimization. i) At this stage, definitive

texts cannot be submitted as the project is still in the implementation phase and has not been received. Furthermore, specifically, regarding the

“Hyperion” program,

the following information was provided in the aforementioned memorandum: a) The subjects are understood to be the following: asylum seekers, public employees of the Reception and Identification Service and the Asylum Service of the Ministry of Migration and Asylum (YMA), employees of various specialties in non-governmental organizations (lawyers, interpreters, social workers, psychologists, doctors, health professionals), officials of the European Asylum Support Office (EASO), and those employed by the local municipality through public benefit work programs of the OAED. b) No other biometric data records are maintained by the YMA, apart from those processed through the “Hyperion” system, and there is no processing of personal data by the Hyperion and Centaur programs in order to extract personal data of special categories (e.g., political beliefs from video images showing individuals who have participated in protests), and therefore Article 9 of the GDPR does not apply in principle. c) The “Hyperion” system interoperates with the systems of HDIKA and AADE. “Hyperion” simply retrieves personal data (identifying information) of asylum seekers from the “Mapping of Foreigners’ Traffic” (XKA) system of ELAS, through an interoperable call over https, between the central servers of the two entities. However, this data is retrieved from the asylum subsystem of XKA, which is used exclusively by the competent Asylum Service of the YMA; consequently, Hyperion does not interoperate with ELAS systems, but with a YMA system hosted in ELAS facilities. d) The YMA does not collect, does not have access to, and does not use biometric data collected by other humanitarian organizations (NGOs, etc.) for the verification or confirmation of the identity of the recipients of their humanitarian services. Any collection of biometric data from residents directly by NGOs is done solely with the consent of the beneficiaries, without the involvement of the YMA. e) The legal bases for the processing of biometric data within the framework of the “Hyperion” program are the legal basis of Article 6 paragraph 1, point (f) of the GDPR and the fulfillment of a duty performed in the public interest in the exercise of public authority under Article 6 paragraph 1, point (e) assigned to the data controller. Furthermore, the processing of biometric data for the indisputable identification of a person is permitted in the cases of Article 9 § 2 points (b), (c), (g), and (i) of the GDPR. Regarding consent, residents upon entering their accommodation structure fill out a printed Personal Data Registration Form of the ΥΠΥΤ where they provide consent for the processing that has taken place. This consent is requested in addition to the legal basis of Article 6 paragraph 1, point (f) and the legal basis of the fulfillment of a duty performed in the public interest in the exercise of public authority under Article 6 paragraph 1, point (e). Consent for the processing of biometric data through an access control system may be considered free only if alternative methods for access control to the monitored facilities are provided. Alternative methods for controlled access have shown that they can easily be circumvented by unscrupulous individuals (e.g., rejected asylum applicants or offenders who hid in other structures, entering them with forged/altered entry permits to avoid receiving the rejection decision for asylum or to avoid being interrogated). g) The reference to “old-type systems that include the processing of biometric data” was incorrect and pertains to previous procedures for authorized access and controlled entry.

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– exit to the accommodation structures, where no form of biometric data processing took place.

Following the examination of the above memoranda from the Ministry of Migration and Asylum (YMA) and all the elements of the file, the Authority sent the letter no. Γ/ΕΞΕ/431/20-02-2023 to the Ministry of Migration and Asylum, in order to discuss before the Plenary of the Authority on Tuesday, March 7, 2023, the aforementioned issues regarding the operation of the “Centaurus” and “Hyperion” systems of YMA. In this meeting, which was held via videoconference, present on behalf of YMA was B, General Director of the General Directorate of Information and Communications, as well as G on behalf of the contracting company. Present were also Ioannis Giannakakis, lawyer with registration

number ... and Dimitrios Kampourmalis, lawyer with registration number ..., data protection officers of YMA, in order to provide clarifications on issues raised by the President and the Members of the Authority.

The aforementioned, after orally presenting their views, were given a deadline during this meeting to submit written memoranda for further support of their claims by March 31, 2023. Following this, YMA timely submitted on March 31, 2023, the letter no. Γ/ΕΙΣ/2625/07-04-2023 of the Data Protection Authority (ΥΠΔ), along with the attached supporting documents, in which, after reiterating the claims made before the Authority during the meeting, it initially pointed out that the compliance actions of YMA with the GDPR and Law 4624/2019 have intensified and are continuous despite the fact that the specific programs have not been fully developed in all structures, are still in the implementation phase and operational testing, and the final acceptance control of the projects by YMA is pending.

Furthermore, it provided clarifications regarding the following issues:

a) The main or general legal basis for the processing carried out by the Centaurus system is the performance of a task in the public interest in the exercise of public authority [Article 6(1)(e) GDPR], based on the national legislation regarding migration policy, while it is noted that YMA has justified in a previous memorandum the necessity of implementing the measure of installing and operating video surveillance systems in the Accommodation Structures, citing the damages that the Structures continuously suffer due to vandalism, resulting in substantial damage to public property, causing financial loss to the latter for their restoration and endangering the health of vulnerable groups, such as children and their guardians. The main or general legal basis for the processing carried out by the Hyperion system for authorized access to the Reception and Identification Centers (KYT) and the Asylum Centers (ΚΕΔ) is the performance of a task in the public interest in the exercise of public authority [Article 6(1)(e) GDPR], while the processing of special categories (biometric) data (fingerprints) occurs for reasons of substantial public interest (Article 9(2)(g) GDPR), based on the Dublin III Regulation or the Migration Code, while the ΚΕΔ constitute "critical state infrastructures" (Decision of the Hellenic Data Protection Authority 31/2010). For the balancing of interests, the size of the monitored area and the number of data subjects being monitored are taken into account, as well as the protection of critical infrastructures such as refugee camps. Additionally, it is emphasized that "the reference to more than one lawful basis for processing does not imply that YMA is changing these (lawful basis swapping) undermining the rights of data subjects, but that there are cases where more than one lawful basis for processing is applicable."

b) The retention period for the data of the "Centaurus" system is fifteen (15) days, after which they are automatically deleted. In the event that an incident is identified during this period, a portion of the video is isolated and retained for up to one (1) additional month for the purpose of investigating the incident and initiating legal proceedings to defend our legitimate interests, while if the incident involves a third party, the video is retained for up to three (3) additional months. The retention period for the data of the "Hyperion" system concerning the beneficiaries (data subjects) begins from the submission of their initial application to the ΚΕΔ and is dependent on the duration of their stay, the hosting procedures, and the granting of asylum.

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in accordance with the applicable legislation on immigration and the implementation of the Dublin III Regulation. Upon the subject's departure from the accommodation structure, their data is deleted.

c) Information to data subjects is provided through the special form of the ΥΠΥΤ, where there is explicit and specific information prior to any processing of the personal data of the subjects regarding the impending processing of their data by the systems "Centaurus" and "Hyperion," with the following wording: "I acknowledge that I am entering a controlled access area monitored by a video surveillance system and consent to the collection of my image or my fingerprint data for my protection against malicious actions against me, and in particular for the management of my entry, exit, and confirmation of my presence at the Center, as well as for the safety of the staff and residents of the Center."

Regarding the "Centaurus" system, Level A information is provided through clear warning signs/labels (attached sample in a previous memorandum) for the operation of video surveillance systems, which have been placed at all points within the ΚΕΔ, as well as around where the cameras of the "Centaurus" system are located and operating. In addition to on-site notifications, a monitoring policy

has been published in electronic media, informational brochures, and a provision of a phone number & email address for further inquiries. Furthermore, Level B information is provided, as a specific Privacy Policy for video surveillance has been developed (attached with a previous memorandum) as well as an on-site Privacy Notice (attached with a previous memorandum) at the entry Gates to the KED. Regarding the "Hyperion" system, Level B information is provided, as a specific Privacy Policy for biometric data has been developed (attached with a previous memorandum).

d) The YMA, within the framework of its activities and usual operations, acts as the Data Controller, collecting personal data of individuals with whom it interacts in the context of its responsibilities, while additionally functioning as an entity implementing actions, among which is the action "Redesign of the operational framework of accommodation structures for asylum seekers with an emphasis on security," which commenced in 2021, part of which is the implementation of the projects "Centaurus" and "Hyperion," for which contracts have been concluded as follows: "Centaurus A" constitutes a Confidential Contract with number ... and protocol number Confidential ... with the contractor company "ESA SECURITY SOLUTIONS A.E." The contract is in the execution stage and has been delivered to the Incident Management Center in a space of the YMA, the main Central infrastructure in the Data Center of the YMA, with the supply, installation, and configuration of the equipment and software of central infrastructures. "Centaurus B" has been divided into 3 separate contracts and is in PHASE 1, upon completion of which the implementation of the project (installation/configuration) in the Structures will begin. The first Structures (Samos, Kos, Leros, Orestiada Outpost) have been implemented and are already operating on a pilot basis. Furthermore, a list of executors regarding the "Centaurus" and "Hyperion" systems is provided.

e) The conduct of DPIAs for the "Hyperion" and "Centaurus" systems took place without the entirety of their functionality and the scope of their configured operations being "known" (known in the correct assessment of the Authority), due to the confidentiality of the content of the contracts and due to their evolving implementation as follows: 1) DPIA for the CCTV video surveillance system of the "Centaurus" Program on 11-01-2022 (partial update on 29-9-2022). It will be updated again upon the completion of "Centaurus B." 2) DPIA for the drone video surveillance system of the "Centaurus" Program on 20-01-2022 (partial update on 6-10-2022). It will be updated again upon the completion of "Centaurus B." 3) DPIA for biometric data (fingerprints) of the "Hyperion" Program on 30-01-2022 (partial update on 10-10-2022). 4) DPIA for the RFID card of the "Hyperion" Program on 10-10-2022. Furthermore, it is noted that the initial conclusions drawn regarding the impacts on data subjects are not yet secure.

f) According to the "Centaurus A" Contract, the interconnection of the "Centaurus" system with Civil Protection, the EKAB, the

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Police, the Fire Service, and the Coast Guard. The transmission of data from the video surveillance system may also be directed to law enforcement authorities; therefore, the legal basis for processing is the legal obligation of the Ministry. The act of transmission to law enforcement authorities is governed by the GDPR framework, while the processing carried out by the authorities themselves is governed by the framework of Directive 2016/680. A general provision for the transmission of data from public entities is contained in Article 26 of Law 4624/2019, which, in the case of data processing through the surveillance of public spaces, applies complementarily and subsidiarily with Article 9 of Presidential Decree 75/2020, to the extent that it cannot be applied. The provision of a video decoder to the Hellenic Police (ΕΛ.ΑΣ), Civil Protection, and the Fire Service is anticipated at points to be indicated/agreed upon so that in the event of a crisis, images can be transmitted from the Incident Management Center (ΚΔΣ) of the Ministry of Migration and Asylum (YMA) to the operational centers of the aforementioned entities. Access to the data of the beneficiaries is conducted through the network of the Hellenic Police "POL," which is a classified, physically independent network, with management access only by authorized users of the Hellenic Police. Users of the POL system (foreign traffic mapping system) are authorized regarding access and handling of information by the State Security, following the prescribed procedure, while access to these systems is done through a special card and the use of access codes. Incoming and outgoing correspondence is processed through the Electronic Document Management System "IRIDA" – one of the benefits of which is the secure transmission of

information. Additionally, the classification of contracts as confidential ensures minimal sharing of information exclusively among classified roles. The IRIDA correspondence management system serves all documents of the organization, and its administrators are the authorized personnel of the Air Force. All confidential correspondence is processed through the classical procedures provided by the EKA.

The "Hyperion" system, upon completion, will interoperate with the Asylum Application ALKYONI II, will be responsible for access control (entry – exit through security turnstiles, with the presentation of an individual migrant card, NGO member, employee, and simultaneous use of a fingerprint), monitoring of provisions per migrant using an individual card (food, clothing supplies, etc.), and movements between the Reception and Identification Centers (KYT), the Temporary Accommodation Centers (KEΔN), and the Hosting Structures. Concurrently, the project includes the creation of a Mobile Application that will provide personalized information to the user, will serve as their electronic mailbox regarding their asylum application process, and will allow the Service to provide personalized updates. The system extracts the identifying details of asylum seekers from the Foreigners Traffic Mapping system (XKA) of the Hellenic Police (ΕΛΑΣ), through an interoperable call over https, between the central servers of the two entities, which is used exclusively by the competent Asylum Service of the YMA; consequently, "Hyperion" does not interoperate with systems of the ΕΛΑΣ, but with a system of the YMA hosted in facilities of the ΕΛΑΣ. According to the National Security Regulation and Presidential Decree 106/23-12-2020, the competent administrative body for the Ministry of Migration and Asylum is the Independent Department of Political Planning for Emergency Situations. Furthermore, through "Hyperion," a Tax Identification Number (ΑΦΜ) is assigned to asylum seekers and beneficiaries of temporary protection through an interoperable call implemented between the central server of the YMA and the ΚΕΔ, as well as a Temporary Insurance and Health Care Number for Foreigners (Π.Α.Α.Υ.Π.Α.) through an interoperable call implemented between the central servers of the YMA and ΗΔΙΚΑ.

ζ) The preparation of an activity file constitutes a specific deliverable of the new contract with ... with the contractor company "EUROAXONES INNOVATIVE TECHNOLOGICAL & CONSULTING SERVICES S.A." for the provision of external DPO services and is expected to be completed within the first semester of the current year.

η) Regarding the contracts of the YMA with the executors, it is noted that these have been sent as attachments with a previous memorandum and that the content of these contracts has been presented in the form of an appendix "Update on the Processing of Personal Data."

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Furthermore, a standard Data Protection Impact Assessment (DPIA) has been drafted and has already been sent to the data processors for review and signature.

θ) Regarding the adherence to the principle of proportionality for the automated processing being carried out, particularly through the video surveillance system, it is noted that the processing through the "Centaurus" video surveillance system is by definition automated processing to which the GDPR applies. The adoption of other preventive and protective measures that do not include video surveillance (e.g., static guarding, use of security doors, alarm systems, stronger lighting) is insufficient to achieve the purpose, as these were implemented in the previous period and were ineffective. For the monitoring of the facilities, digital (IP) fixed bullet-type cameras, as well as pan-tilt-zoom (PTZ) cameras, have been installed and are used, which support software for integrating image analysis algorithms (Video Content Analytics) and which constitute the "Centaurus" video surveillance system. The IP cameras have sensors that can capture images in standard resolution, as well as in high definition (HD), while supporting functions such as motion detection, connection to alarms, and patrol mode. Motion detection activates recording. The PTZ cameras have the capability of rotation and zooming in on the point of interest via remote control. It is irrelevant for the application of the provisions of Article 2 of Presidential Decree 75/2020 whether the surveillance systems use analog or digital technology, whether they have fixed, rotating, or mobile cameras, adapted to fixed bases or portable ones carried by vehicles of any kind (land, sea, or air, manned or unmanned) or by natural persons. The cameras capture images from an indeterminate and vast number of individuals. The number of individuals falling within the range of the cameras remains indefinite. These are critical facilities where

residents are never alone but coexist with public officials from the Reception and Identification Service and the Asylum Service of the Ministry of Migration and Asylum, employees of various specialties in Non-Governmental Organizations (lawyers, interpreters, social workers, psychologists, doctors, health professionals), staff from the European Asylum Support Office (EASO), and individuals hired by the local Municipal Authority through public benefit work programs of the OAED, and therefore cannot claim a violation of their privacy. The aforementioned cameras do not record sound, while primarily monitoring the common areas and the surrounding environment of the Reception and Identification Centers (KED) and their perimeter. The recorded data consists of visual data. The data and control of the system are directed to a suitably configured area in the Signal Reception Center, where the Control Room of the facility is located, within which the corresponding equipment for data collection and recording, monitoring of the cameras, and the workstation of the operator-guard is installed. The network allows the transmission of images captured by each camera in real-time to the equipment of the control center. The video data – images are encoded with a compression algorithm and stored on storage media. "There are cameras with the ability to pan and focus which are generally permitted, and their movement is restricted to the maximum possible extent or when this is not physically possible, the camera operators are suitably trained and qualified. The ability to zoom in/focus is exceptionally permitted when there is an urgent need for it, such as during incidents and altercations."

In the context of this specific processing of personal data, the following applicable Information Security measures have been taken: i) User computers have malware protection software (antivirus). ii) Mechanisms for controlling physical access to the facilities are implemented. iii) Measures for the physical protection of critical equipment used for processing are implemented (e.g., structured cabling, etc.). iv) Measures for protection against natural disasters are implemented (e.g., fire safety system, etc.). v) User access codes for the software supporting the surveillance system are required. vi) Security policies at the software level are implemented to prevent unauthorized access. vii) Maintenance of the information systems used in the context of the processing is carried out.

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i) Regarding the role of the data protection officer(s), a list of duties is provided as follows: they will inform and advise the Ministry and employees processing data about their obligations under the GDPR and national data protection legislation, will monitor compliance with the provisions of the GDPR and national data protection laws, as well as the organization's policies regarding personal data protection, including the assignment of responsibilities, awareness-raising, and training of staff involved in processing procedures and related audits, will provide advice, when requested, regarding data protection impact assessments and will monitor their performance in accordance with the GDPR, will cooperate with the European and National Data Protection Authority and will represent the Ministry before competent authorities as the Data Protection Officer, will act as a contact point for the supervisory authority on matters concerning processing, including prior consultation referred to in Article 36 of the Data Protection Regulation and will consult on any other matter where necessary, will draft, submit for approval, and circulate Data Protection Policies, will provide tailored training, by Directorate, Department, and Function, regarding the framework of the GDPR, will advise on the need to conduct personal data impact assessments (DPIAs) using predefined templates and will ensure their submission to the Authority, as appropriate.

ii) Regarding the reference in previous memoranda to the possibility of fulfilling the right to portability, it is noted that this is incorrect and occurred by mistake as the right to portability is an extension of the right of access or, in another view, a complement to it.

iii) Regarding other types of cards for entry into the Reception Structures (other than the International Protection Applicant Card), it is noted that according to the provisions of the applicable legislation in Greece, the recording of all individuals entering these structures is required, as well as the issuance and granting of entry cards to them, valid for one year, and therefore, in the reception structures, the recording of members/partners/volunteers of International Organizations and services takes place, while for the issuance of an entry card to journalists, they are required to declare their full name and identification document (ID card or passport). Finally, for the entry of suppliers and/or staff (e.g., catering), no card is issued, but entry for the collection of supplies, etc., is conducted through a different entrance.

The Authority, after examining the details of the file and what emerged from the hearing before it and the memoranda of the Ministry of Migration and Asylum, having heard the presenters and the clarifications from the assistant presenters, who attended without voting rights, after thorough discussion,

CONSIDERED ACCORDING TO THE LAW

1) Since the provisions of Articles 51 and 55 of the General Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data (hereinafter GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137) indicate that the Authority has the competence to supervise the application of the provisions of the GDPR, Law 4624/2019, and other regulations concerning the protection of individuals from the processing of personal data.

2) Since, according to Article 4(1) of the GDPR, "personal data" means "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person," while "biometric data" is defined by Article 4(14) of the GDPR as "personal data resulting from specific technical processing related to the physical, biological, or behavioral characteristics of a natural person, which allow or confirm the identification of that natural person."

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"undisputed identification of the said natural person, such as facial images or fingerprint data."

Biometric methods refer to the techniques for certifying the identity of natural persons through the analysis of their stable characteristics. Biometric methods can be classified into two categories: i. techniques based on the analysis of physical or genetic characteristics (such as fingerprints, palm geometry, iris analysis, facial features, DNA) and ii. techniques based on the analysis of behavior (such as signature, voice, typing style).

3) Because according to Article 5(1)(a) of the GDPR "1. Personal data shall be processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'). Furthermore, according to the fundamental principle of accountability under Article 5(2) of the GDPR, the data controller is responsible for and must be able to demonstrate compliance with paragraph 1 of the same article.

4) Because the lawfulness of processing is ensured by invoking and substantiating the appropriate case under Article 6 of the GDPR and for special categories of data by applying the appropriate case under Article 9 of the GDPR. According to Article 6(1) of the GDPR "1. Processing shall be lawful only if at least one of the following applies: a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes, (...) e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller, f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, especially if the data subject is a child. The provision f) of the first paragraph does not apply to processing carried out by public authorities in the performance of their tasks."

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5) Because biometric data falls under the special categories of personal data, which are generally prohibited from being processed, according to Article 9(1) of the GDPR ("Processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, as well as processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, data concerning health or data concerning a natural person's sex life or sexual orientation shall be prohibited."). Paragraph 2 of the same article provides exceptions to the above prohibition, thus providing the permissible legal bases for processing special categories of data. According to this paragraph "Paragraph 1 shall not apply to the following cases: a) the data subject has given explicit consent to the processing of those personal data for one or more specific purposes,

unless Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject, [...] g) processing is necessary for reasons of substantial public interest, based on Union or Member State law, which is proportionate to the aim pursued, respects the essence of the right to data protection, and provides for suitable and specific measures to safeguard the fundamental rights and interests of the data subject, [...]."

6) Because valid consent under the GDPR must meet both the conditions of the definition of consent, according to Article 4(11) of the GDPR ("any indication of will, freely given, specific, informed, and unambiguous, by which the data subject signifies agreement, by a statement or by a clear affirmative action, to the processing of personal data relating to him or her"), and the additional conditions of Article 7 of the GDPR, according to which: "1. When processing is based on consent, the controller shall be able to demonstrate that the data subject has consented to the processing of his or her personal data. [...] 3. The data subject has the right to withdraw his or her consent at any time."

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the right to withdraw consent at any time. The withdrawal of consent does not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject is informed accordingly. The withdrawal of consent is as easy as giving it. [...] Furthermore, according to Recital 43 of the GDPR, "To ensure that consent has been freely given, consent should not provide a valid legal basis for the processing of personal data in a specific case when there is a clear imbalance between the data subject and the data controller, particularly in cases where the data controller is a public authority and it is therefore almost unlikely that consent has been given freely in all circumstances of this specific situation. [...]" According to the Guidelines 5/2020 of the EDPB on consent under Regulation 2016/679 (GDPR 5/2020), "it is unlikely that public authorities can rely on consent for data processing, as, when the data controller is a public authority, a clear power imbalance is often found in the relationship between the controller and the data subject. It is also clear that in most cases the data subject has no realistic alternatives other than to accept (the terms of) the processing by that specific data controller. The EDPB considers that there are other legal bases which are, in principle, more suitable for the activities of public authorities (see Article 6(1)(c) e.g. [...]"¹ It is also noted that "consent can only be valid if the person to whom the data relates is in a position to have a real choice and there is no risk of deception, intimidation, coercion, or significant negative consequences (e.g. significant additional costs) if they do not give their consent. Consent is not freely given in cases where there is any element of coercion, pressure, or inability to exercise free will."²

¹ Guidelines 5/2020 on consent under Regulation 2016/679, EDPB, Ed. 1.1, May 4, 2020, p. 9.

² Ibid. p. 11.

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It is further stated that "There is also a power imbalance in the context of employment. Given the dependency that the employer/employee relationship entails, it is unlikely that the data subject will be in a position to refuse to provide their employer with consent for the processing of their data without fearing or without facing a real risk of suffering negative consequences due to their refusal."³ As also noted in the aforementioned Guidelines 5/2020 of the EDPB, "[...] data subjects must always provide consent for a specific purpose of processing. According to the principle of purpose limitation, Article 5(1)(b) and Recital 32, consent may cover different actions, provided that these actions serve the same purpose. It is understood that specific consent can only be obtained when data subjects are specifically informed about the intended purposes of the use of their data." (§57). Furthermore, "providing information to data subjects before obtaining their consent is essential in order to enable them to make informed decisions, to understand what they are consenting to, and to exercise, for example, the right to withdraw their consent." (§62), while "the consequence of failing to comply with the requirements for informed consent is that the consent will be invalid." (§63) and, consequently, in this case, the processing becomes unlawful, in the absence of a legal basis under Article 9(2). As described in the Guidelines 5/2020, to ensure valid consent, the provision of certain basic and necessary information is required. However, depending on the circumstances and context of each case, more information may be required for the data subject to truly understand the processing actions in question.

Moreover, to establish an appropriate legal basis under Article 9(2)(a) of the GDPR, consent must also be "explicit." According to the

3 Ibid. p. 10.

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According to the above Kf 5/2020, "explicit consent is required in certain cases where there is a serious risk to data protection and, therefore, a high level of individual control over personal data is deemed appropriate. Based on the GDPR, explicit consent is provided for in Article 9 concerning the processing of special categories of data [...] and in Article 22 concerning automated individual decision-making, including profiling" (§91).

Regarding the establishment of the legal basis, it is emphasized that the application of one of the six bases provided in Article 6 of the GDPR must be determined prior to the processing activity and in relation to a specific purpose, while "Notification that data will be processed based on consent, while in reality another legal basis is used, is fundamentally unfair to individuals. In other words, the data controller cannot switch from consent to other legal bases. For example, it is not permitted to retroactively use the legal basis of legitimate interest to justify processing if issues arise regarding the validity of consent."⁴

7)

Because, to ensure the principle of transparency in processing, Article 12(1) of the GDPR states: "The data controller takes appropriate measures to provide the data subject with all information referred to in Articles 13 and 14 and any communication in the context of Articles 15 to 22 and Article 34 regarding processing in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly when addressing information specifically to children. The information is provided in writing or by other means, including, where appropriate, electronically. When requested by the data subject, the information may be provided orally, provided that the identity of the data subject is proven by other means." The mandatory information to be provided is stipulated in Article 13 of the GDPR for the case where data is collected from the data subject and in Article 14 of the GDPR for the case where the data has not been collected from the data subject. Specifically, in the latter case, as indicated by Articles 13, 14, and 12(1) of the GDPR, this information includes, among others: a) the identity and contact details of the data controller and, where applicable, of the representative, b) the contact details of the data protection officer, where applicable, c) the purposes of the processing for which the personal data are intended, as well as the legal basis for the processing, d) the relevant categories of personal data (for Article 14 of the GDPR), e) the recipients or categories of recipients of the personal data, f) where applicable, that the data controller intends to transfer personal data to a recipient in a third country or an international organization and relevant information, g) the period for which the data will be stored, or, if that is not possible, the criteria used to determine that period, h) information regarding the rights of the data subject under Articles 15-22 of the GDPR. The information, according to the aforementioned articles, is provided at the time of data collection. According to the Guidelines of the Article 29 Working Party on transparency (WP260 rev.01)⁵, when informing data subjects in accordance with Articles 13-14 of the GDPR, the information provided should be specific and definitive: "The use of linguistic qualifiers such as 'may', 'certain', 'often', and 'likely' should also be avoided. When data controllers choose to use vague wording, they should be able, in accordance with the principle of accountability, to demonstrate why the use of such wording could not be avoided and why it does not undermine the lawfulness of the processing."⁶

8)

Because Article 22 of the GDPR states the following: "1. The data subject has the right not to be subject to a decision based solely on automated processing, including profiling, which produces legal effects concerning them or significantly affects them."

⁵ Guidelines on transparency under Regulation 2016/679, Article 29 Working Party (WP260 rev.01), published on November 29, 2017, as finally revised and issued on April 11, 2018.

⁶ Ibid. §13.

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in a similar manner. 2. Paragraph 1 does not apply when the decision: a) is necessary for the

conclusion or execution of a contract between the data subject and the data controller, b) is permitted by Union law or the law of a Member State to which the data controller is subject and which also provides appropriate measures for the protection of the rights, freedoms, and legitimate interests of the data subject, or c) is based on the explicit consent of the data subject. 3. In the cases referred to in paragraph 2, points a) and c), the data controller implements appropriate measures to protect the rights, freedoms, and legitimate interests of the data subject, at least the right to obtain human intervention from the data controller, to express their point of view, and to contest the decision. 4. The decisions referred to in paragraph 2 are not based on special categories of personal data referred to in Article 9, paragraph 1, unless Article 9, paragraph 2, points a) or g) applies and appropriate measures exist to protect the rights, freedoms, and legitimate interests of the data subject.

9) Considering the obligations of the data controller, Article 24 of the GDPR states that: "1. Taking into account the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller implements appropriate technical and organizational measures to ensure and to be able to demonstrate that the processing is performed in accordance with this Regulation. These measures are reviewed and updated when necessary. 2. When justified in relation to the processing activities, the measures referred to in paragraph 1 include the implementation of appropriate policies for the protection of data by the data controller. 3. The adherence to approved codes of conduct as referred to in Article 40 or an approved certification mechanism as referred to in Article 42 may be used as an element to demonstrate compliance with the obligations of the data controller." While Article 25 of the GDPR states that: "1. Taking into account the latest developments, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons from the processing, the data controller effectively implements, both at the time of determining the means of processing and at the time of processing, appropriate technical and organizational measures, such as pseudonymization, designed to implement data protection principles, such as data minimization, and to integrate the necessary safeguards into the processing in such a way that the requirements of this Regulation are met and the rights of data subjects are protected. 2. The data controller implements appropriate technical and organizational measures to ensure that, by default, only personal data that are necessary for each specific purpose of the processing are processed. This obligation applies to the scope of personal data collected, the extent of their processing, the retention period, and their accessibility. In particular, these measures ensure that, by default, personal data are not made accessible without the intervention of the data subject to an indefinite number of natural persons. 3. An approved certification mechanism according to Article 42 may be used as an element that demonstrates compliance with the requirements set out in paragraphs 1 and 2 of this Article."

10) Considering Article 28 of the GDPR, paragraphs 1, 3, and 9: "1. When processing is to be carried out on behalf of a data controller, the data controller uses only processors that provide sufficient guarantees for the implementation of appropriate technical and organizational measures, in such a way that the processing meets the requirements of this Regulation and ensures the protection of the rights of the data subject. (...) 3. The processing by the processor is governed by a contract or other legal act under Union law or the law of the Member State, which binds the processor to the data controller.

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processing and specifies the subject matter and duration of the processing, the nature and purpose of the processing, the type of personal data and the categories of data subjects, as well as the obligations and rights of the data controller. The said contract or other legal act specifically provides that the processor: a) processes personal data only on the basis of documented instructions from the data controller, including with regard to the transfer of personal data to a third country or international organization, unless required to do so by Union law or the law of the Member State to which the processor is subject; in this case, the processor informs the data controller of the legal requirement before processing, unless the law prohibits such information for serious reasons of public interest, b) ensures that persons authorized to process personal data have committed to confidentiality or are under an appropriate statutory obligation of confidentiality, c) takes all necessary measures pursuant

to Article 32, d) complies with the conditions set out in paragraphs 2 and 4 for engaging another processor, e) takes into account the nature of the processing and assists the data controller by implementing appropriate technical and organizational measures, insofar as this is possible, to fulfill the data controller's obligation to respond to requests for exercising the rights of the data subject provided for in Chapter III, f) assists the data controller in ensuring compliance with the obligations arising from Articles 32 to 36, taking into account the nature of the processing and the information available to the processor, g) at the choice of the data controller, deletes or returns all personal data to the data controller after the end of the processing services and deletes existing copies, unless Union law or the law of the Member State requires the storage of personal data, h) makes available to the data controller all necessary information to demonstrate compliance with the obligations set out in this Article and

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allows and facilitates audits, including inspections, conducted by the data controller or another auditor mandated by the data controller. Regarding the first paragraph item i), the processor shall immediately inform the data controller if, in its opinion, any instruction infringes this Regulation or other Union or national data protection provisions. (...) 9. The contract or other legal act referred to in paragraphs 3 and 4 shall be in writing, including in electronic form.”

11) Since according to Article 30 paragraphs 1 and 2 of the GDPR: “1. Each data controller and, where applicable, its representative, shall maintain a record of processing activities for which it is responsible. This record shall include all of the following information: a) the name and contact details of the data controller and, where applicable, of the joint data controller, the representative of the data controller, and the data protection officer, b) the purposes of the processing, c) a description of the categories of data subjects and the categories of personal data, d) the categories of recipients to whom the personal data are to be disclosed or have been disclosed, including recipients in third countries or international organizations, e) where applicable, the transfers of personal data to a third country or international organization, including the identification of that third country or international organization and, in the case of transfers referred to in Article 49 paragraph 1 second subparagraph, the documentation of the appropriate safeguards, f) where possible, the envisaged time limits for erasure of the different categories of data, g) where possible, a general description of the technical and organizational security measures referred to in Article 32 paragraph 1. 2. Each processor and, where applicable, the representative of the processor shall maintain a record of all categories of processing activities carried out on behalf of the data controller, which shall include the following: a) the name and contact details of the processor or processors and of the data controllers on behalf of whom the processor is acting and, where

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case, of the representative of the data controller or the processor, as well as the data protection officer, b) the categories of processing carried out on behalf of each data controller, c) where applicable, the transfers of personal data to a third country or an international organization, including the identification of the said third country or international organization and, in the case of transfers referred to in Article 49 paragraph 1 second subparagraph, the documentation of the appropriate safeguards, d) where possible, a general description of the technical and organizational security measures referred to in Article 32 paragraph 1. (...) ”

12) Whereas according to Article 31 GDPR: “The data controller and the processor and, where applicable, their representatives shall cooperate, upon request, with the supervisory authority in the performance of its tasks.” This provision is part of the general accountability obligations of an entity (controller or processor), which are included in Section 1 of Chapter IV of the GDPR.

13) Whereas according to Article 35 paragraph 1 GDPR, when a type of processing, particularly using new technologies and taking into account the nature, scope, context, and purposes of the processing, is likely to result in a high risk to the rights and freedoms of natural persons, the data controller shall carry out, prior to the processing, an assessment of the impact of the intended processing operations on the protection of personal data. An assessment may consider a set of similar processing operations

that present similar high risks. The Authority, in application of paragraph 4 of Article 35 GDPR, has drawn up and published a list of the types of processing operations that are subject to the requirement for conducting an impact assessment regarding the protection of data in accordance with paragraph 1 of this article (Decision DPA 65/2018). Among these operations are included the following: “1.2 Systematic processing of data aimed at making automated decisions, which produce legal effects concerning data subjects or significantly affect data subjects in a similar manner and may lead to exclusion or discrimination against the natural person. Relevant examples include the automatic denial of an online credit application or practices of electronic recruitment without human intervention (recital 71 of the GDPR) or the automatic denial of an insurance benefit. 1.3 Systematic processing of data that may prevent the data subject from exercising their rights or using a service or contract, particularly when considering data collected from third parties. Relevant examples include the case where a bank checks its customers using a creditworthiness database to decide whether to grant them a loan or not, the listing of the data subject on a “black” list, such as the list of mobile phone providers (telecommunication), the listing of the data subject in whistleblowing systems. (...)”

2.1 Large-scale processing of special categories of data (including genetic and biometric data for the purpose of unequivocally identifying a person) referred to in Article 9 paragraph 1 and the data referred to in Article 10 of the GDPR. (...) 3.1 Innovative use or application of new technologies or organizational solutions, which may include new forms of data collection and use, with a potential high risk to the rights and freedoms of natural persons such as the combined use of fingerprints and facial recognition for improved physical access control, or mhealth applications or other “smart” applications, from which user profiles are created (e.g., daily habits), or artificial intelligence applications or publicly accessible blockchain technologies that include personal data. (...)”.

14) Whereas regarding the definition of Data Protection Officer, Article 37 GDPR states: “1. The data controller and the processor shall designate a data protection officer in every case where: a) the processing is carried out by a public authority or body, except for courts acting in their judicial capacity, b) the core activities of the data controller or the processor consist of processing operations which, by their nature, scope, and/or purposes, require regular and systematic monitoring of data subjects on a large scale, or c) the core activities of the data controller

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processing or the processor constitutes large-scale processing of special categories of personal data under Article 9 and data concerning criminal convictions and offenses referred to in Article 10. (...) 5. The data protection officer is appointed based on professional qualifications and, in particular, based on the expertise they possess in the field of law and data protection practices, as well as their ability to fulfill the duties referred to in Article 39. 6. The data protection officer may be a member of the staff of the data controller or the processor or may perform their duties under a service provision contract. 7. The data controller or the processor shall publish the contact details of the data protection officer and communicate them to the supervisory authority. Regarding the position of the Data Protection Officer, Article 38 of the GDPR states: “1. The data controller and the processor ensure that the data protection officer is involved, properly and in a timely manner, in all issues related to the protection of personal data. 2. The data controller and the processor support the data protection officer in the performance of the tasks referred to in Article 39 by providing necessary resources for the performance of those tasks and access to personal data and processing operations, as well as resources necessary to maintain their expertise. 3. The data controller and the processor ensure that the data protection officer does not receive instructions regarding the performance of those tasks. They are not dismissed or subjected to penalties by the data controller or the processor for performing their duties. The data protection officer reports directly to the highest management level of the data controller or the processor. 4. Data subjects may contact the data protection officer regarding any issues related to the processing of their personal data and the exercise of their rights under this regulation. 5. The data protection officer is bound by the obligation of confidentiality or secrecy regarding the performance of their duties, in accordance with Union or Member State law. 6. The data protection officer may also perform other tasks and obligations. The data controller or the processor ensure that such tasks and obligations do not lead to a conflict of interest.” Finally, according to Article 39 of the GDPR: “1. The data protection

officer has at least the following tasks: a) to inform and advise the data controller or the processor and the employees who process their obligations arising from this regulation and from other provisions of Union or Member State law regarding data protection, b) to monitor compliance with this regulation, with other provisions of Union or Member State law regarding data protection and with the policies of the data controller or the processor in relation to the protection of personal data, including the assignment of responsibilities, awareness-raising and training of staff involved in processing operations, and related audits, c) to provide advice, when requested, regarding the data protection impact assessment and to monitor its implementation in accordance with Article 35, d) to cooperate with the supervisory authority, e) to act as a contact point for the supervisory authority on issues related to processing, including prior consultation referred to in Article 36, and to consult, as appropriate, on any other matter. 2. In the performance of their tasks, the data protection officer takes due account of the risks associated with processing operations, considering the nature, scope, context, and purposes of the processing." Finally, for the position of the DPO in public authorities, the provisions of Articles 6-8 of Law 4624/2019 apply concurrently.

15) Because from the examination of all the elements of the file and the submitted memoranda and their accompanying documents, following the assessment of the processing of personal data carried out during the implementation of the "Hyperion" programs and

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From the "Centaur" of the Ministry of Migration and Asylum (YMA), the following findings emerged regarding the issues presented in the following paragraphs.

16) Regarding the legal basis for processing (including the processing of special categories of personal data, primarily biometric data), with the above-mentioned protocol number of the Authority G/EIΣ/2625/07-04-2023 memorandum, the YMA clarified that the primary or general legal basis for processing carried out by the "Hyperion" and "Centaur" systems is the performance of a task in the public interest in the exercise of public authority according to Article 6 paragraph 1 point e of the GDPR, while regarding the processing of special categories (biometric) data, it invoked processing for reasons of substantial public interest, according to Article 9 paragraph 2 point g of the GDPR (albeit with an incorrect reference to the case law of the Authority, namely Decision No. 31/2010), and noted that the assessment of interests takes into account the size of the area being monitored and the number of data subjects being supervised, as well as the protection of critical infrastructures such as refugee camps. From the review of all the elements of the file, it is noted that in previous documents submitted to the Authority (indicatively in the attached "Privacy Policy for the Processing of Biometric Data," "Privacy Policy for Video Surveillance Systems & Security Cameras in the Reception Facilities of the YMA," and "Privacy Policy for Drone Video Surveillance Operations," attached to the protocol number G/EIΣ/10991/13-10-2022 response document of the YMA), there is confusion regarding the legal basis for processing carried out by the "Hyperion" and "Centaur" systems, respectively, as the "legitimate interest" according to Article 6 paragraph 1 point f of the GDPR is mentioned, which is explicitly excluded by the provisions of the GDPR for processing carried out by public authorities in the exercise of their duties. Furthermore, in the letter of the YMA with protocol number of the Authority G/EIΣ/10875/10-10-2022, it is stated that, since residents of the Reception and Identification Centers (KEΔ) sign a printed consent form upon their entry for the processing of their data, the legal basis of consent also applies supplementarily. This practice, beyond the revised wording in the subsequent memorandum of the YMA regarding the legal basis for processing, contradicts the provisions of the GDPR and the Guidelines for Consent, as described above. Moreover, the aforementioned memorandum does not clarify, nor does it emerge from the other elements of the file, what the other legal bases that may, according to the aforementioned memorandum, have parallel application are, and which cases they concern, while taking into account the differentiations and the questions that arose from previous memoranda requesting clarifications regarding the applicable legal basis, it appears that it is not clearly established whether and in which cases other legal bases may have parallel application for the processing of data carried out by the "Hyperion" and "Centaur" systems. Furthermore, there is a lack of reference and substantiation of the legal basis according to the category of subjects (employees, vulnerable groups, minors, members and employees of NGOs, European Asylum Support Office, etc.) regarding their data, which are processed using the "Centaur" –

"Hyperion" systems. Moreover, according to what is stated in the protocol number G/ΕΙΣ/10991/13-10-2022 memorandum of the YMA, there is no processing of personal data by the "Hyperion" and "Centaur" programs in order to extract data of special categories of personal nature, and for this reason, Article 9 of the GDPR does not apply in principle. However, no specific and concrete guarantees or appropriate documentation are provided for the claims regarding the non-processing of special category data, given that particularly, through the "Centaur" system and video recording, it is possible for data of special categories such as data concerning religious beliefs, racial or ethnic origin, etc., to be processed. Taking into account the placement of cameras in courtyards and common areas in closed accommodation facilities for foreigners who have entered the country illegally and that special conditions prevail in these facilities by definition, as well as the mention that there is a connection of the "Centaur" system with the Hellenic Police, the possibility of processing special category data for law enforcement purposes cannot be excluded in principle. In this case, it would be advisable to identify and substantiate the appropriate legal basis for such processing.

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17) Because regarding the processing carried out through the video surveillance system, and particularly its automated functions (activation of perimeter breach alarms using cameras and motion analysis algorithms, criteria for identifying an event, categorization and evaluation of events by operators, etc.), it is noted that sufficient clarifications were not provided by the Ministry of Migration and Asylum (YMA) to ensure a safe assessment of the processing being conducted and to draw conclusions on behalf of the Authority. Furthermore, there is confusion regarding the characterization of the monitored area of the Reception and Identification Centers (ΚΕΔ) by the video surveillance system as a public space and the invocation of Presidential Decree 75/2020 as a subsidiary applicable provision regarding the relevant data processing, given that Presidential Decree 75/2020 cannot be applied in this case, as the structures under consideration cannot be classified as public spaces to which Presidential Decree 75/2020 applies. With these data and those presented in the previous consideration, a violation of Article 5(1)(a) of the General Data Protection Regulation (GDPR) arises.

18) Because regarding the provision of information to data subjects, with protocol number Γ/ΕΙΣ/2625/07-04-2023, the YMA clarified that information to data subjects regarding the processing carried out by the systems "Hyperion" and "Centaurus" is provided through the special form of the ΥΠΥΤ prior to any processing of their personal data with the following wording: "I acknowledge that I am entering a controlled access area monitored by a video surveillance system and I consent to the collection of my facial image or my fingerprint data for my protection against malicious actions against me, and in particular for the management of my entry, exit, and confirmation of my presence at the Center as well as for the safety of the staff and residents of the Center." Furthermore, the YMA pointed out that regarding the "Hyperion" system,

7 According to Article 1 of Presidential Decree 75/2020, its purpose is to effectively achieve the objectives provided for in Article 14 of Law 3917/2011 (Α' 22), according to which: "3. Public spaces for the application of the previous paragraphs are understood as: a) those designated for common use according to the applicable legislation and city plans, b) freely accessible open spaces (fenced or not) that are made available for common use in a lawful manner, and c) passenger transit stations with public transport."

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a more specific Privacy Policy for biometric data has been developed. Regarding the "Centaurus" system, information is provided through clear warning signs/labels regarding the operation of video surveillance systems, which have been placed at all points within the ΚΕΔ (former Reception and Identification Centers) as well as around the perimeter where the cameras of the "Centaurus" system are located and operational, while a monitoring policy has been published in electronic media and informational brochures, as well as the provision of a telephone number and email address for further inquiries. Additionally, a more specific Privacy Policy for video surveillance (attached to a previous memorandum) as well as an on-site Privacy Notice (attached to a previous memorandum) has been developed at the entry gates to the ΚΕΔ (former Reception and Identification Centers).

19) Because, regarding the information provided to data subjects, the following is noted: The

information provided through the ΥΠΥΤ form is included in an extensive document, which is completed during the registration process of the subjects and a copy of which is given to the subject. The information regarding the processing of data is provided in both Greek and English, while technical/legal terms (e.g., "malicious actions") are used. Taking into account the profile of the subjects to whom the provided information regarding the "Hyperion" and "Centaurus" systems pertains, it is noted that from the entirety of the file's elements (subjects who do not understand Greek or English, vulnerable populations), it is assessed that the aforementioned information is, on the one hand, incomplete, and on the other hand, does not meet the requirements for providing information in "a concise, transparent, intelligible, and easily accessible form, using clear and plain language" (Article 12(1) GDPR and Recital 39 GDPR). Furthermore, the content of the aforementioned brief information does not align with the transparency requirements set forth in Articles 12, 13, and 14 of the GDPR, as there is a lack of a series of information that, according to these provisions, should be provided to data subjects. Regarding the Privacy Policies developed by the YMA, it is unclear if and how they are accessible to the subjects, while in any case, they could not be considered as providing

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information in accordance with the above provisions, given that, on the one hand, it is provided exclusively in the Greek language and, on the other hand, the form and style of the texts of the Privacy Policy, by their nature, do not meet the transparency requirements for clear and simple wording of information according to the targeting of the audience to which it is addressed, namely vulnerable groups and children. (see Guidelines [2018] on Transparency under Regulation 2016/679 of the Article 29 Working Party). Finally, regarding the privacy notices that have been placed concerning the video surveillance systems, which have been provided in the English language, it is noted that they contain incorrect/contradictory and incomplete information (for example, they mention as a legal basis Article 6(1)(f) of the GDPR, see attached #5, #8a, and #8b in the memorandum with reference number G/EIS/10991/13-10-2022 of the Ministry of Citizen Protection, as well as the non-transmission of data to third parties, while, as the Ministry of Citizen Protection acknowledges, there is a connection of the "Centaurus" system with the Police). Finally, regarding the publication of the monitoring policy in electronic media, informational brochures, provision of a telephone number, and email address for further inquiries, as claimed by the Ministry of Citizen Protection, it is noted that this was not sufficiently documented before the Authority. Given these facts, a violation of Articles 12, 13, and 14 of the GDPR arises.

20) Since, taking into account the above, it is deemed that the Ministry of Citizen Protection must make the necessary corrections regarding the legal basis and the necessary additions through appropriate means and comprehensible, understandable language of all necessary information, including the categories of recipients, as is evident from the connection of the relevant systems with public entities, which are included in the information provided to the data subjects in accordance with Articles 5(1)(a), 13, and 14 of the GDPR in conjunction with the provisions of Article 12 of the GDPR.

21) Since regarding the description, clarification, and definition of the role of the Ministry of Citizen Protection as the Data Controller and all those executing the processing, with the Authority's reference number G/EIS/2625/07-04-2023 memorandum, the Ministry of Citizen Protection corrected and clarified that it is the data controller for the processing carried out by the "Hyperion" and "Centaurus" systems and provided a list of processors for the aforementioned systems. Regarding the inadequate fulfillment of the terms of Article 28(3) of the GDPR concerning the contract between the data controller and the processor, it is noted that, as explicitly stated in the Guidelines 7/2020 of the European Data Protection Board regarding the concepts of the data controller and the processor, "since the Regulation establishes a clear obligation to conclude a written contract, unless no other relevant legal act applies, the absence of a contract constitutes a violation of the GDPR. Both the data controller and the processor are responsible for ensuring the conclusion of a contract or other legal act governing the processing." Therefore, the failure to fulfill the terms of Article 28(3) of the GDPR constitutes a violation for the data controller. From the entirety of the file's elements, it appears that the following have been submitted before the Authority, which concern contractors for the implementation of the "Centaurus" and "Hyperion" systems:

A) For the "Centaurus" system: a) the contract no. 30/2021 between the Ministry of Citizen Protection

on the one hand and the consortium of companies "ESA SECURITY AE- ADAPTIT AE", b) the contract no. 32/2021 between the Ministry of Citizen Protection on the one hand and the consortium of companies "ESA SECURITY AE- ADAPTIT AE", c) the contract no. 31/2021 between the Ministry of Citizen Protection and the company "SPACE HELLAS S.A.", and d) an excerpt from the contract no. 1/2021 between the Ministry of Citizen Protection and the company "ESA SECURITY SOLUTIONS S.A.". However, the contracts submitted as above under a) to c) for the "Centaurus" system do not contain terms for the processing of data by the contractors as processors in the context of the implementation of this system in accordance with the provisions of Article 28 of the GDPR, while the "Information on the Processing of Personal Data," which exists as an Annex to all the above under a) to c) contracts, pertains to the processing of data in the context of the tender process for the implementation of the project. Furthermore, the contract no. 1/2021 between the Ministry of Citizen Protection and the company "ESA SECURITY SOLUTIONS S.A.", which also pertains to the "Centaurus" system, is not submitted in its entirety, but only

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an excerpt of which contains no reference to data processing by the contractor as the processor in accordance with the provisions of Article 28 of the GDPR.

B) For the "Hyperion" system, excerpts from contracts numbered 60/2020, 117/2020, 141/2020, 36/2021, 3/2022 between the Ministry of Digital Governance (YMA) and the company "BYTE COMPUTER ABEE" have been submitted, which contain no reference to data processing by the contractor as the processor in accordance with the provisions of Article 28 of the GDPR. According to the initial claims of YMA, the contracts of YMA with the other processors were not submitted or were not submitted in their entirety, as they are claimed by YMA to be "confidential contracts," while in the memorandum dated 31-03-2023, YMA states that a data protection agreement has been drafted between YMA and the processors as an annex to the contracts with the contractors, and their review and signature are pending. In this regard, it is recalled that according to Article 58(1)(e) of the GDPR, the national supervisory authority has investigative powers, specifically the power "to obtain from the data controller and the processor access to all personal data and all information necessary for the performance of its tasks," and according to Article 15(1) of Law 4624/2019 regarding its investigative and corrective powers, "in conducting investigations and audits, the Authority has the power to obtain from the data controller and the processor access to all personal data that is subject to processing and all information necessary for the purposes of the relevant audit and the performance of its tasks, without being able to invoke any kind of confidentiality." In this specific case, the Authority called upon YMA to submit relevant contracts only to ascertain their conclusion between the data controller and the individual processors and in particular to verify the required annex to the contract with the terms for the protection of personal data. However, the necessary elements for this review were not submitted before the Authority, but only one of YMA's contracts with the processors, specifically in draft form, and the contract of YMA with the Anonymous Company "Electronic Governance of Social Security S.A." (H.Δ.I.K.A. S.A.), which includes as an Annex a Contract for the Protection of Personal Data. From these incomplete elements, it is not possible for the Authority to draw reliable conclusions regarding the compliance with the conditions set by Article 28 of the GDPR for the processors, as it does not appear that data protection contracts have been concluded between YMA as the data controller and the mentioned processors. Consequently, YMA, as the data controller, did not sufficiently substantiate before the Authority the compliance with the terms of the aforementioned provisions of Article 28 of the GDPR, and therefore, a violation of this article arises.

22) Given that regarding the maintenance of activity records, with the protocol number Γ/ΕΙΣ/2625/07-04-2023, YMA pointed out that the preparation of the activity record has been entrusted to the Data Protection Officer (ΥΠΔ) and had not been completed at that time. It is noted that at that time the examined systems were already fully operational, while, according to the requirements of Article 25(1) and (2) of the GDPR regarding the requirement for protection by design and by default, the activity record should have been prepared at least before the commencement of the operation of these systems. Furthermore, according to Article 30(1) of the GDPR, the data controller has, in principle, the obligation to maintain an activity record and may, where appropriate, have it maintained by a representative. Therefore, the invocation of the late assignment of this specific obligation to the

ΥΠΑ is futile. Consequently, YMA, as the data controller, who bears the responsibility for maintaining this record, did not substantiate before the Authority its compliance with Article 30 of the GDPR.

23) Given that regarding the conduct of an impact assessment, including the examination of compliance with the principle of proportionality, both with protocol number Γ/ΕΙΣ/10875/10-10-2023 and with protocol number Γ/ΕΙΣ/2625/07-04-2023, YMA clarified that the conduct of the Data Protection Impact Assessment (DPIA) on the existing technological systems took place without the entirety of their functionality and the scope of their parameterized functions being known due to a) the confidentiality of the content of the contracts and b) due to their evolving implementation,

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without these being further clarified in the Authority's assessment. The Ministry of Migration and Asylum (YMA) also pointed out that the initial results regarding the impacts on data subjects are not secure. Overall, the impact assessment conducted for each of the technological systems appears, based on the documents received by the Authority so far, to be, on the one hand, fragmented and limited in scope, covering specific individual processing operations of the systems and not their entirety, and on the other hand, not fully up-to-date. Furthermore, the claims of the YMA regarding the confidential nature of the contracts and their evolving implementation are irrelevant to the relevant provisions of the General Data Protection Regulation (GDPR), particularly given that conducting an impact assessment is an obligation of the data controller, and invoking the confidentiality of contracts against the data controller itself or its representative or the appointed Data Protection Officer (DPO) is not permissible. Therefore, in violation of Article 35 paragraphs 1 to 3 of the GDPR, the YMA, as the data controller, has not conducted the assessment as it was obliged to, in accordance with the requirements of Article 25 GDPR paragraphs 1 and 2 regarding the requirement for data protection by design and, by definition, a comprehensive and systematic assessment of the impacts of the planned processing operations on personal data protection before the commencement of any processing, nor has it timely sought the opinion of the DPO.

24) Because, regarding the interconnection of the systems "Centaurus" and "Hyperion" with other public sector systems (HKA – ALKYONI II - HDIKA - AADE), the Authority took into account the clarifications provided partially in the memorandum with reference number Γ/ΕΙΣ/2625/07-04-2023, among which is the submitted (in draft form) contract between the YMA and HDIKA S.A. (in which, however, the required terms regarding personal data protection are omitted) concerning the interconnections of the information systems with other systems. Specifically, in relation to the "Centaurus" system, it is mentioned that access to the data of beneficiaries is granted by authorized users of the Hellenic Police (ΕΛ.ΑΣ.) through a classified naturally independent network "POL". Furthermore, an electronic document management information system "IRIDA" is used, managed by authorized personnel of the Hellenic Air Force, for the secure handling of incoming and outgoing correspondence, which is conducted among others by designating the documents as confidential so that they are distributed to exclusively classified roles. Regarding the "Hyperion" system, it will communicate with the not yet implemented system "ALKYONI II". It is also mentioned that a mobile application is being created for the purpose of establishing an electronic mailbox regarding the application process for personalized information from the service. The feeding of the "Hyperion" system appears to be done through the "HKA" system, which according to the latest document from the YMA is hosted in facilities of the Hellenic Police without access from it, only by the competent Asylum Service of the YMA, although this is not further clarified in the aforementioned memorandum. Finally, the legislative provisions concerning the communication between the "Hyperion" system and "HDIKA" and "AADE" are mentioned, but sufficient details regarding their interconnection are not provided. In any case, from the review of all the elements of the file, no evidence is presented before the Authority that further explains the interconnections between the aforementioned systems, resulting in the Authority being unable to assess compliance with the principles of legality according to Article 5 of the GDPR, particularly regarding the interconnection of the "Centaurus" system. It is also noted that the aforementioned elements, which were not submitted, resulted in the absence of a detailed description and analysis of the interconnection of the systems, which should have already been reflected in the impact assessment of these systems with the subsequent analysis of potential risks and the corresponding mitigation measures.

25) Because regarding the definition, position, and adequacy of the performance of the duties of the data protection officer(s) (Articles 37 to 39 GDPR and Articles 6 to 8 of Law 4624/2019), in the memorandum with reference number Γ/ΕΙΣ/2625/07-04-2023, the YMA emphasizes the crucial importance of the DPO and provides a list of duties, in accordance with the provisions of Article 39 GDPR. However, no contract for the appointment of the DPO is presented before the Authority, with a detailed description of their duties, so that the Authority can assess whether, in principle, based on the concluded contract, the DPO appointed by the YMA meets...

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the criteria and specifications set forth by the aforementioned provisions of the GDPR and Law 4624/2019, taking into account the Guidelines regarding data protection officers of the Article 29 Working Party. Furthermore, from the review of all the elements of the file, especially after the submission to the Authority of incomplete texts and inaccurate, contradictory, and unclear responses (e.g., clarifications regarding behavioral analysis algorithms have not been provided, nor regarding the contribution of the DPO to the impact assessment – Articles 39(1)(c) and 35(2) GDPR), it is concluded that the Ministry of Digital Governance (YMA) did not sufficiently document before the Authority that the DPO appointed by YMA participated, duly and in a timely manner, in all matters related to the protection of personal data, in accordance with the provisions of Article 38(1) GDPR and Article 7(1) GDPR, having a complete picture of the processes carried out by the systems under review, providing opinions and guidance to the data controller regarding the processing activities mentioned herein. Similarly, the corresponding response of the data controller (YMA) is not established, who, in the event that they chose to ignore the advice of the DPO, must document the reasons in writing, so that they can be submitted to the supervisory authority in accordance with the principle of accountability. Given these facts, a violation of the provisions of Articles 37 to 39 of the GDPR arises.

26) Since, taking into account the above conclusions, which are based on an assessment of all the elements of the file and those that emerged from the hearing process and the submitted memoranda, it is concluded that YMA, as the data controller, did not sufficiently document before the Authority its compliance with the principle of accountability (Article 5(2) GDPR), as it did not provide, as it was obliged to do, before the Authority complete, accurate, and clear information to sufficiently document the legality of the actions carried out within the framework of the aforementioned systems concerning the processing of personal data. On the contrary, from the examination of the submitted elements and memoranda, ambiguities and contradictory claims arise, as well as a failure to comply with a series of provisions of the GDPR and Law 4624/2019 as mentioned in the previous considerations. The failure to comply constitutes an admission by YMA in its memorandum dated 10-10-2022, in which a reference is made to the newly established nature of the Ministry; however, this claim is irrelevant as it does not justify the violation of the aforementioned fundamental rules of personal data protection during the operation of the above systems "Centaurus" and "Hyperion." Furthermore, the failure to comply raises doubts about the completeness of the design concerning the provision of the ability to exercise the rights of data subjects and the proper application of the relevant provisions of the GDPR, although this issue was not specifically examined by the Authority and, therefore, is not taken into account in forming its judgment. Furthermore, the Authority finds that the data controller, during the examination of the case and despite its repeated calls for the provision of specific clarifications and analysis of the issues under examination, showed difficulty in cooperating with the Authority regarding the provision of information and specifically with the submission of contracts with the processors and contracts with the data protection officer, as well as with the provision of clarifications for the processing carried out through the "Centaurus" system and particularly its automated functions, and the interconnection of the "Centaurus" and "Hyperion" systems with other public systems. Following these, the Authority deems that the failure to submit to the critical elements for the examination of the case under review constitutes a violation of the obligation of cooperation of YMA, as the data controller, with the supervisory authority under the provisions of Article 31 of the GDPR, which fall within the accountability obligations of the data controller before the supervisory Authority.

27) Since, according to the previous considerations, the Authority finds that in relation to the above-described violations, there is a case for exercising its corrective powers under Article 58(2) GDPR. Specifically, for the violations of Articles 31 and 35 GDPR, the Authority finds that there is a

case for imposing, in application of the provision of Article 58(2)(h) GDPR,

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effective, proportional, and deterrent administrative monetary fine, in accordance with Articles 83 GDPR and 39 of Law 4624/2019, taking into account the Guidelines 04/2022 for the calculation of administrative fines under the GDPR of the European Data Protection Board, to the extent that they may apply to the case at hand.

28) Whereas, according to Article 83 paragraph 4 GDPR "Violations of the following provisions shall incur, in accordance with paragraph 2, administrative fines of up to 10,000,000 EUR or, in the case of enterprises, up to 2% of the total worldwide annual turnover of the preceding financial year, whichever is higher: a) the obligations of the data controller and the processor in accordance with Articles 8, 11, 25 to 39 and 42 and 43, (...)", and according to Article 83 paragraph 5 GDPR "Violations of the following provisions shall incur, in accordance with paragraph 2, administrative fines of up to 20,000,000 EUR or, in the case of enterprises, up to 4% of the total worldwide annual turnover of the preceding financial year, whichever is higher: a) the basic principles for processing, including the conditions for consent, in accordance with Articles 5, 6, 7, and 9, b) the rights of data subjects in accordance with Articles 12 to 22, (...)", while according to Article 83 paragraph 7 GDPR: "Subject to the corrective powers of supervisory authorities in accordance with Article 58 paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on public authorities and bodies established in that Member State."

Furthermore, according to Article 39 of Law 4624/2019 "1. Subject to the corrective powers of the Authority in accordance with Article 58 paragraph 2 of the GDPR, the Authority may, by a specifically reasoned decision and after a prior call for explanations from the interested parties, impose on public sector entities, as defined in case a of paragraph 1 of Article 14 of Law 4270/2014 (A' 143), excluding public enterprises and organizations of Chapter A' of Law 3429/2005 (A' 314), in their capacity as data controllers, for violations: a) of case a of paragraph 4 of Article 83 of the GDPR, excluding Articles 8, 27, 29, 42, 43 of the GDPR, b) of paragraphs 5 and 6 of Article 83 of the GDPR, excluding Articles 17, 20, 47, 90, and 91 of the GDPR, c) of Articles 5, 6, 7, 22, 24, 26, 27 (except for paragraph 7 thereof), 28 to 31, and of Articles 32 paragraph 1 case a, 33 to 35 of this law, an administrative fine of up to ten million (10,000,000) euros.

2. In deciding on the imposition of an administrative fine, as well as in determining its amount, the following shall be taken into account for each individual case: a) the nature, gravity, duration of the violation, the extent or purpose of the relevant processing, as well as the number of data subjects affected by the violation and the extent of the damage they suffered, b) any actions taken by the public sector entity to mitigate the damage suffered by the data subjects, c) any relevant previous violations by the public sector entity, d) the categories of personal data affected by the violation, e) the manner in which the Authority became aware of the violation, particularly whether and to what extent the public sector entity reported the violation, and f) whether measures referred to in Article 58 paragraph 2 of the GDPR have already been ordered against the public sector entity for the same violation, and the degree of its compliance with them.

3. In the event that the public sector entity violates multiple provisions of the GDPR or this law for the same or related processing operations, the total amount of the administrative fine shall not exceed the amount specified for the most serious violation."

29) Whereas, in assessing the data, in order to select the appropriate and corrective measure, the Authority considers the following:

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- that the processing in question relates to the main activities of the data controller (Article 39 par. 2 point a of Law 4624/2019)
- that the processing for monitoring purposes, which results in violations of the provisions of the GDPR, concerns a large number of subjects, including employees and individuals with characteristics of vulnerability, who have real difficulties in exercising their rights and any potential filing of complaints (Article 39 par. 2 point a of Law 4624/2019)
- that there is no material harm to the data subjects (Article 39 par. 2 point a of Law 4624/2019)
- that it involves processing activities of a large volume of data, including special category data,

particularly biometric data (Article 39 par. 2 point d of Law 4624/2019)

- that no relevant previous violations of the Data Protection Authority (DPA) have been identified (Article 39 par. 2 point c of Law 4624/2019) and that no corrective powers have been ordered against the DPA under Article 58 par. 2 of the GDPR for the same violations (Article 39 par. 2 point f of Law 4624/2019).

FOR THESE REASONS

The Authority

A) finds that the failure to conduct a comprehensive, overall, and coherent Data Protection Impact Assessment (DPIA) from the design stage and by definition, prior to the procurement and implementation of the "Centaurus" and "Hyperion" systems constitutes a violation of Articles 25 and 35 of the GDPR and imposes a monetary fine of one hundred thousand (100,000) euros on the Ministry of Migration and Asylum, for the reasons extensively analyzed in the reasoning of this decision,

12 See Guidelines 04/2022 on the calculation of administrative fines under the GDPR of the European Data Protection Board, par. 53, point b) iii) regarding the criteria for assessing the severity of the violation.

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B) finds that the submission before the Authority of memoranda and accompanying documents containing vague, incomplete, unclear, and contradictory information, as described in the body of this decision, the failure to submit to the Authority the text of contracts with the data processors that contain clauses regarding the processing of personal data within the framework of the "Centaurus" and "Hyperion" systems in accordance with Article 28 of the GDPR, the failure to provide clarifications regarding the processing carried out through the Centaurus system and particularly its automated functions, and regarding the interconnection of the "Centaurus" and "Hyperion" systems with other public systems while failing to provide the requested information, as well as the failure to submit contracts that the DPA claims to have concluded with the data protection officer, constitute a violation of Article 31 of the GDPR and imposes a monetary fine of seventy-five thousand (75,000) euros on the Ministry of Migration and Asylum, for the reasons extensively analyzed in the reasoning of this decision, and

C) orders, under Article 58 par. 2 point d of the GDPR, the Ministry of Migration and Asylum, as the data controller, to take all necessary actions to complete its compliance with the obligations of the data controller, as described in the body of this decision, within a deadline of 3 (three) months from the receipt of this decision, informing the Authority accordingly.

The President

Konstantinos Menoudakos

The Secretary

Irini Papageorgopoulou